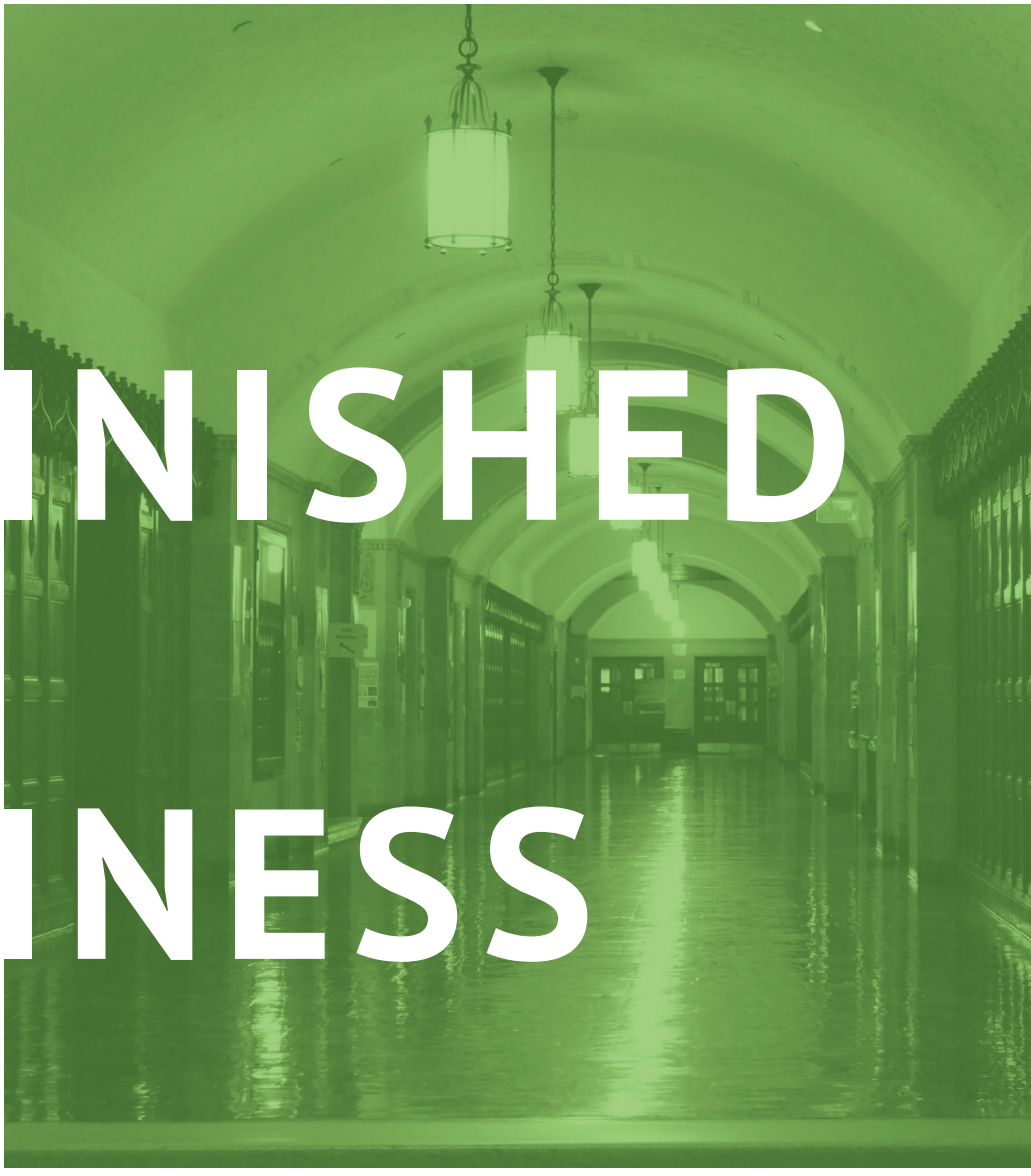
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UNFINISHED BUSINESS

A year later, revisiting Brett Kavanaugh's confirmation

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MISALIGNED STARS



An observatory reignites protests on Hawaii's Maunakea

BY **ISABELLE RHEE**

On a late July morning, along the wide boulevard of South Beretania Street in downtown Honolulu, Hawaiian flags flew upside down from makeshift flagpoles.

The inverted Hawaiian flag, commonly seen hanging from car windows or the backs of pick-up trucks, represents a symbol of distress. This summer, on Hawaiian Sovereignty Restoration Day, signs reading "We Are Maunakea" lined Thomas Square Park in downtown Honolulu, where inverted flags flew in resistance. Attendees sported t-shirts with the slogan, "See you on the Mauna," referencing Mauna a Wakea (commonly known as "Maunakea"), a dormant volcano on the island of Hawai'i that is the site of longstanding conflict.

The intensifying debate surrounding the proposed construction of the Thirty Meter Telescope (TMT) on Maunakea's summit has gripped the islands since 2015. People around the world have joined the conversation about what this project means for Hawai'i's land, economy, and indigenous rights. Today, the presence of astronomical research on Maunakea continues to act as a divisive force among the people of Hawai'i.

The TMT—run by the California Institute of Technology; the University of California system; and research institutes in Japan, India, and China under the collective moniker "the TMT International Observatory Corporation"—is the largest and one of the most expensive of its kind in the Northern Hemisphere, with projected costs at nearly two billion dollars, and would become the premier site in the world to study the cosmos. The corporation is also partnered with the Association of Universities for Research in Astronomy (AURA), which includes Yale, Harvard, MIT, and a host of other top universities.

Though, according to the chair of Yale's astronomy department Dr. Sarbani Basu, "Yale is not affiliated with the TMT at all, despite its AURA membership," students circulated a petition over the summer in reaction to the news of Yale's participation in AURA to pressure the astronomy department to publicly denounce the events on Maunakea. While discussions surrounding Maunakea at Yale have largely de-escalated since the summer, in late September, Mayor Harry Kim of Hawai'i County intensified protests when he released a statement demanding that the TMT become the last area on Maunakea ever developed for a telescope. Protesters in Hawai'i continue to camp on the base of the mauna at the time of this article's writing well into October.

The TMT Observatory Corporation has largely ignored their efforts.

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In 2009, the corporation selected the summit of Maunakea as the world's best site for astronomical

discovery, with construction slated to begin in 2014. However, 750 kia'i, or protectors, blocked the roads leading up to the summit, and Hawai'i Governor David Ige temporarily halted the construction.

Protests against the TMT also reached the courts. In 2015, David Kailua Kopper, an attorney at the Native Hawaiian Legal Corporation, the only Native Hawaiian rights law firm in the world, defended numerous kia'i, including master teachers of hula (a Polynesian dance form) and Native Hawaiian practitioners. They were arrested for occupying and leading a vigil on the summit overnight, thus violating emergency rules established by the Board of Land and Natural Resources (BLNR) in Hawai'i. Kopper and his plaintiffs eventually won the case, invalidating the BLNR's emergency rules.

"For every telescope, there was always resistance within the Hawaiian community—that often gets lost in the discussion. People say 'Why now?' There's a long history of people in the Native Hawaiian community being outraged and opposing these projects," Kopper explained to The Politic. "The acts of those people in 2015, I think, created something in others, and now we're seeing the same sentiment—the same commitment—to protecting Maunakea."

It wasn't until three years after Kopper's 2015 lawsuit that public protest surrounding the TMT resurged. In October 2018, the Hawai'i Supreme Court ruled against all legal opposition to the leasing in question. As a result,



construction resumed on the mauna in July 2019. In the following weeks, Maunakea was home to the largest and longest-standing protests in its history.

Noelani Goodyear-Kaʻōpua, associate professor of Hawaiian politics and indigenous social movements at the University of Hawai'i, recalled her experience protesting on Maunakea this summer, when the demonstrations first began. Goodyear-Kaʻōpua arrived at Maunakea on July 14, a few days after the base of the mountain was declared a pu'uhonua, or safe sanctuary, by the protectors. "I don't think anybody quite knew what was going to happen in the coming days," she reflected. "The next day, when the construction was supposed to begin, I was one of the eight people in the early hours of the morning who went and chained ourselves to the cattle guard on the base of Maunakea Access Road" in an attempt to block law enforcement and construction vehicles from reaching the summit.

During the following weeks, numbers at the Maunakea Access Road surged to nearly 5,000. Protesters organized medical services (Mauna Medics) and established Pu'uhonua o Pu'uhuluhulu University, a community-run school, to guide the demonstrators through lessons on Hawaiian language, history, and indigenous rights. On the island of O'ahu, activists created a slow-moving convoy down the H1 freeway, occupying the roadways in protest of 38 kupuna, or elders, being arrested for peacefully protesting on Maunakea. At the same time, opponents of the TMT from Maui released a video statement affirming that Maui would stand with the protectors of the mauna. "I have not seen anything of this level of unity and solidarity across the islands and in the diaspora and beyond, from allies as well, since the Kahoʻolawe movement of the late 1970s," Goodyear-Kaʻōpua recollected, alluding to the Hawaiian-led activism against the U.S. Navy's bombing of the island of Kahoʻolawe. "It's an incredibly exciting and powerful moment of emergence."



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The standoff on Maunakea dates back much further in the state's history than what is often depicted by the media. In 1964, the summit of Maunakea was formally identified by the University of Hawai'i as an exceptional site for observatories. Public concern surrounding the growing number of telescopes on Maunakea increased in the 1970s, and former Governor George Ariyoshi expressed his concern that new development would "pose a threat to the priceless qualities of the mountain." At the time, three telescopes were installed on Maunakea. Today, the TMT could become the 14th.

Following Governor Ige's proclamation of a state of emergency for Maunakea in July 2019, Kopper represented Paul Neves, a member of the royal order and a hula practitioner from the Big Island, who sued Ige for denying his religious and cultural right to regularly visit the mauna. Ige withdrew the emergency proclamation by the end of July before the case was decided.

Cheryl Ho, another longtime hula practitioner, resident of O'ahu, and ally to the kia'i, echoed these sentiments of resistance. "Maunakea, I have come to realize through this whole process starting in 2015, is a sacred mountain to Hawaiians, just like Fuji-yama is sacred to the Japanese," Ho said. "Astronomy, as western culture knows it, and as Hawaiian science knows it, is valuable and to be learned. But the thing that I have really learned to abhor is the act of digging into that sacred mountain and defacing her and justifying that huge structure as a scientific, astronomical victory and mark of progress."

As the accounts of Native Hawaiian protectors and allies have swept through international news and inspired worldwide calls for the defense of indigenous rights, there has been considerably less attention on the Native Hawaiians and Hawai'i residents who either support the TMT or are wary of mainstream media coverage of the activism against it.

Keoni Schultz, an attorney at Cades Schutte, a law firm based in Honolulu, is part Hawaiian and a proponent of the TMT on Maunakea. While Schultz acknowledged the frustrations and organizing efforts of the protectors, he argued that "at the end of the day, having a world-class, science-based telescope is great for Hawai'i. It's great for the economy, great for science, great for local people to have high-paying, high-class jobs," he explained. According to Schultz, protesting against the telescope will not ameliorate existing problems associated with living in Hawai'i, such as "a lack of high-paying jobs, the cost of living, and traffic."

While demonstrators continue to organize at the base of the mauna, Schultz noted that only a few miles separate Maunakea from the Pohakuloa Training Area, the largest United States Department of Defense installation in the Pacific. "Four to ten miles away, the U.S. military is literally blowing up the 'aina [land] on an almost daily basis, occasionally bombing it. That to me, if you want to talk about the desecration of the 'aina, is [worse]. There is actually uranium that goes into the soil that leaches into the groundwater," Schutlz described. "If all these people were there protesting the Pohakuloa, I would actually understand that."

***

For Mary Beth Laychak, news coverage of the TMT conflict has too often failed to focus on the Big Island communities the proposed TMT would most directly affect. Laychak, a resident of the small town Waimea on the Big Island, has served as the outreach manager of the Canada-France-Hawai'i Telescope (CFHT) near the summit of Maunakea for 12 out of the 16 years she's lived in Hawai'i. As part of her job, Laychak works with the local Waimea community, notably through Maunakea Scholars, a statewide outreach program that helps students in 13 Hawai'i public schools use telescopes on the Maunakea observatories.

"For me, one of the biggest things is that I see much more civility [about Maunakea disagreements] when I speak to people in town than you see online or in news reports," Laychack explained. Waimea, located half a mile from the CFHT, is a town of around 9,000 people, and the CFHT and Keck Observatory on Maunakea are the town's two largest employers. A recent economic report published by Maunakea Observatories stated that astronomy currently sustains approximately 1,400 jobs statewide with $170 million of economic impact generated annually through astronomy. According to Laychak, there are over 500 indi-

viduals currently working on the Maunakea observatories, and projects at CFHT incorporate and hire as many local vendors as possible.

"It benefits everybody—the observatories, the local community—when we hire local," Laychak explained. "With that being said, there are some positions where you simply can't—where there are so few people in the world who have the expertise with some systems, where you have to cast a literal worldwide net to get people who are able to do those jobs now."

These benefits, which stem from the economic opportunities and community partnerships sustained by the science on Maunakea, make the TMT conflict much more nuanced than is often depicted, according to Laychak. "To summarize it in two-word soundbites completely misunderstands what is going on in Hawai'i," Laychak explained.

Schultz also argued against this oversimplification: "I fundamentally disagree with the argument that this is a Hawaiian thing, that we Hawaiians need to stop this telescope." Schultz believes the nuances of the debate over the fate of Maunakea underscore the reality that no ethnic population has monolithic political or social beliefs.

This essentializing of the TMT conflict to, among other simplifications, "science versus culture," as Laychak describes, has pervaded major headlines and news outlets. Numerous Native Hawaiian scientists argue that the two are not mutually exclusive; framing it this way denies the value



of indigenous scientists and their knowledge. Dr. Marissa Loving, a Native Hawaiian fellow in the School of Mathematics at the Georgia Institute of Technology, rejected this notion: "I believe in practicing ethical science that uplifts and values the voices of indigenous people." She explained, "One of my primary goals as a mathematician is a commitment to rehumanizing mathematics. For me, speaking out on behalf of Maunakea was not just my responsibility as a Hawaiian but also my responsibility as a mathematician and scholar."

In particular, Loving expressed disappointment that "there is a lot of subtle—and not so subtle—racism on display" in the statements being made in support of the TMT. She pointed to former Hawai'i Governor Neil Abercrombie, who had stated in a July 2019 Hawaii News Now report that "the people who are being oppressed are the ones who are for the telescope. They're the ones who have been called names, have been told you're against Hawaiians, you're against religion."



According to Loving, Abercrombie's statement blatantly disregarded the history of U.S. colonialism in Hawai'i, as well as the ongoing oppression that Native Hawaiians face in their homeland.

Goodyear-Kaʻōpua also echoed these grievances regarding the media's use of racist tropes of laziness, disorganization, and attachment to relics of the past when describing the protectors.

"The thing that I'm trying to say to all the various reporters is that it's really important to emphasize the ways that the movement is comprised of multiple generations, multiple genders, and people from all kinds of different backgrounds," Goodyear-Kaʻōpua explained. "Giving a face to the protectors is really important, in particular because of these ways of trying to minimize or slander or stereotype who the protectors are."

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Amid what is arguably one of the most divisive topics in Hawai'i, Kopper and Goodyear-Kaʻōpua continue to believe in the strength of kapu aloha, or a code of conduct grounded on love and respect for others.

Goodyear-Kaʻōpua has engaged with differing opinions regarding the fate of Maunakea in her classroom, particularly by facilitating debates on the TMT issue with students on both sides. Regardless, she hopes to emphasize how "kia'i have committed to kapu aloha to meet opponents with compassion and respect for their humanity."

Kopper echoed the importance of this principle from a legal perspective: "I welcome differences in opinions. The purpose of this proclamation case is not so much defending a certain message or a point of view, but defending the right to have [one] and say something."

On those in favor of the TMT, he acknowledged, "They definitely have a right to say it," as long as those on both sides "keep an open mind and treat others with aloha—which is part of the kapu aloha movement. Everyone is

entitled to their own opinions—it doesn't make it right or wrong."

At the time of this article's writing, with what was once a week-long standoff stretching into its third month of demonstrations, the people's presence on Maunakea shows no signs of diminishing soon. Over 100 professors on every campus of the University of Hawai'i system now offer courses that accommodate students who have chosen to continue protesting on the mauna.

On July 30, in reaction to widespread protest, Governor Ige extended the TMT construction until 2021. Today, it is still unclear as to how long the over-100-day presence on Maunakea will persist. And even if the TMT is successfully moved to the Canary Islands—the proposed alternative site for the telescope—protectors and their allies have proven that resistance to the TMT represents far more than just a single telescope.

In September, a group of protestors occupied the entrance of Waimanalo Bay Beach Park in Hawai'i, the site of a controversial redevelopment project. Demonstrators held signs and chanted in solidarity with the anti-TMT movement. In October, protestors blocked the transport of equipment to a major wind farm project in Kahuku.

In an interview with Hawaii News Now, Kamalani Keliikuli, leader of the "Protect Kahuku" activist group, said, "It all started from Ku Kiai Mauna [Protect Maunakea]. If it wasn't for them, I don't think we would have had this much support."

At Waimanalo Bay Beach Park, Hawaiian Flags were flown upside down.





The Stolen Boy

BY **SAM FELDMAN**

China's kidnapping of a six-year-old Tibetan boy in 1995 has thrown the already complex future of Tibetan Buddhism into chaos. As the Dalai Lama approaches age 85, already difficult questions about identifying his successor have been intensified by China's attempts to interfere with a centuries-old religious process—a process that today spills over into regional politics and vast financial holdings. Today, the boy is considered by many to be the world's youngest political prisoner.

There aren't many places like *Dharamsala*.

Nestled at the base of the Himalayas, 5,000 feet above sea level, this northern Indian city feels like a stopping point for the wind as it cascades down some of Earth's largest mountains. The word "city" evokes images of towering buildings and elevated stress levels, but Dharamsala is more acutely characterized by its crisp mountain air and thousands of hanging prayer flags, softly fluttering in the breeze.

Since 1959, however, Dharamsala has been best known as the home of the Dalai Lama. After the Chinese invasion of Tibet in 1950, the Dalai Lama eventually fled for India, where he established the Central Tibetan Administration, a global governing body for Tibetans. Dharamsala, by coincidence, literally translates to "religious sanctuary," and, true to its name, this place continues to serve as a sanctuary to the world's largest group of Tibetans in exile. Beneath the surface of this peaceful mountain enclave, there exists deep unspoken pressure, which has been gradually simmering for the last 25 years.

The tradition of Tibetan Buddhism is centered around priest figures known as *Lamas*, whose primary objectives are to teach and pass down the fundamental concepts of Buddhism. The Tibetan word *la* means soul, and the same word is used to denote a Lama, who is considered to be a nurturer of the soul. The spiritual leader of Tibetan Buddhism is the Dalai Lama, who has emerged in modern times as an international celebrity and political figure. For centuries, however, other Lamas have existed as prominent figures in the religion, each of whom reincarnates, according to a central doctrine of Buddhism.

Geshe Damchoe, a Tibetan monk who lives and studies in Dharamsala, explained to *The Politic* that when the Dalai Lama passes away, "it is the full responsibility of the Panchen

Lama to look for his reincarnation." Mirroring that, Damchoe added, "when the Panchen Lama passes away, it is the duty of His Holiness the Dalai Lama to look for the Panchen Lama's reincarnation."

The Chinese government has for decades already found its own political stake in this reincarnation cycle. After the death of the tenth Panchen Lama in 1989, the search for the next Panchen began with controversy: "There were two different candidates—one that was embraced by the Dalai Lama and the other who was embraced by the Chinese government," Professor David Germano, the founder and Director of the University of Virginia's Tibet Center and a professor of Tibetan and Buddhist Studies, explained to *The Politic.*

In May of 1995, the Dalai Lama identified Gedhun Choekyi Nyima, a six-year-old Tibetan boy, as the reincarnation and new Panchen Lama. Three days later, Nyima and his family disappeared—they have never been seen again. Germano described the situation bluntly: "Clearly the government took him and did something with him. Wherever he is or is not, the Chinese government are the only ones who know."

The taking of the Panchen Lama was particularly jarring because of the special relationship he holds with the Dalai Lama as a central figure in Tibetan Buddhism.

"You can see the obvious problem," Germano explained, laying out the increasingly clear battle that is set to be waged when the current Dalai Lama dies. Just like the last transition in 1989, Germano continued, "the Chinese government is clearly…going to have a candidate, [and they will say] this is the authentic one."

Furthermore, the disappearance of the Panchen Lama may make it impossible for Tibetans to eventually put forward their own candidate in accordance with their tradition. If Tibetans believe that the only person who can accurately identify the new Dalai Lama is the already-selected Panchen Lama, they will be unable to identify their next spiritual leader. Germano anticipated, "it is going to be a massive problem."

For members of the monastic class, the Panchen Lama needs to be found even sooner —in time to learn about Buddhism before the death of the Dalai Lama. "We look at it from the religious point of view," Damchoe said.

"The Panchen Lama needs to get a religious education," Damchoe added, "so that he can become a great teacher and show a path to the people."

The sense of urgency with which Damchoe spoke helps color just how central this problem is for the Tibetan people. The Chinese have imprisoned "thousands and thousands" of Tibetan political prisoners in China, according to Damchoe, which has been well-documented by humanitarian organizations such as Human Rights Watch. All throughout Dharmasala, in fact, walls are plastered with posters of missing family members who Tibetans say are being held captive by the Chinese government. None of these prisoners represent Chinese interference more clearly than the Panchen Lama.

Since the kidnapping of the Panchen Lama in 1995, there have been numerous campaigns



from the United Nations advocating for the Chinese government to let a delegation visit the Panchen Lama. While the Chinese government has refused to let anyone see the Panchen Lama, it has described him as being "very much safe and very much alive," Damchoe said.

Furthermore, the Chinese government has claimed that the Panchen Lama simply does not want to be visited by Tibetans. For decades, China has maintained that he is in protective custody, asserting that he is at risk of being kidnapped by separatists.

While the struggle to free the Panchen Lama has raged since his kidnapping, the Chinese pick for the position has quietly assumed the role along with control of the Panchen Lama's property and assets. This fact has not been overlooked by scholars, including Professor Leonard Van Der Kuijp, a professor of Tibetan and Himalayan studies at Harvard University and the former chair of Harvard's Department of South Asian Studies.

"These Lamas, of course, have large estates," Van Der Kujip explained, comparing them to corporate land-holding entities, and can include vast properties such as monasteries that are home to thousands of monks. When a Lama is dubbed as the reincarnation, they first and foremost inherit the responsibilities of the previous Lama. Additionally, Van Der Kujip said, they inherit "the corporation that belonged to his predecessor who inherited it from his predecessor."

Van Der Kujip explained that questions of reincarnation sit "at the interface of economics, politics, and religion," and that in Tibetan Buddhism more broadly, "money and politics and wealth play a very important role." Referring to this darker side of Buddhism, he added that, "this is part of Tibetan Buddhism that you almost never find discussed."

The Dalai Lama has certainly understood the massive impact of the Panchen Lama's kidnapping since 1995, but as he approaches his 85th birthday, the problem is increasingly apparent—this Dalai Lama cannot live forever. Though the Dalai Lama in 2018 expressed his belief that the Panchen Lama is alive, he and Tibetan monks continue to express their desire for the Panchen Lama's return to Tibet. Nonetheless, according to Damchoe, the Dalai Lama has said that "he is not too curious or anxious about [his successor]."

While he may not be anxious, there is undoubtedly worry among Tibetans who will have to traverse the landscape after their current spiritual leader passes away. These worries, however, hover in the shadows.

"In reality," Damchoe said, "we consider speaking about the ageing, dying, or sickness of the Dalai Lama to be taboo."

Tibetan scholars, however, freely discuss the issue, including Andrew Quintman, a professor of religion at Wesleyan University. "He occasionally muses that he could even be the last Dalai Lama," Quintman said to The Politic, "although he frequently qualifies this by saying 'if that is what the Tibetan people want.'"

"The most intriguing possibility is something altogether different," Quintman suggested, including a scenario in which the Dalai Lama would choose his reincarnation before he passed away.

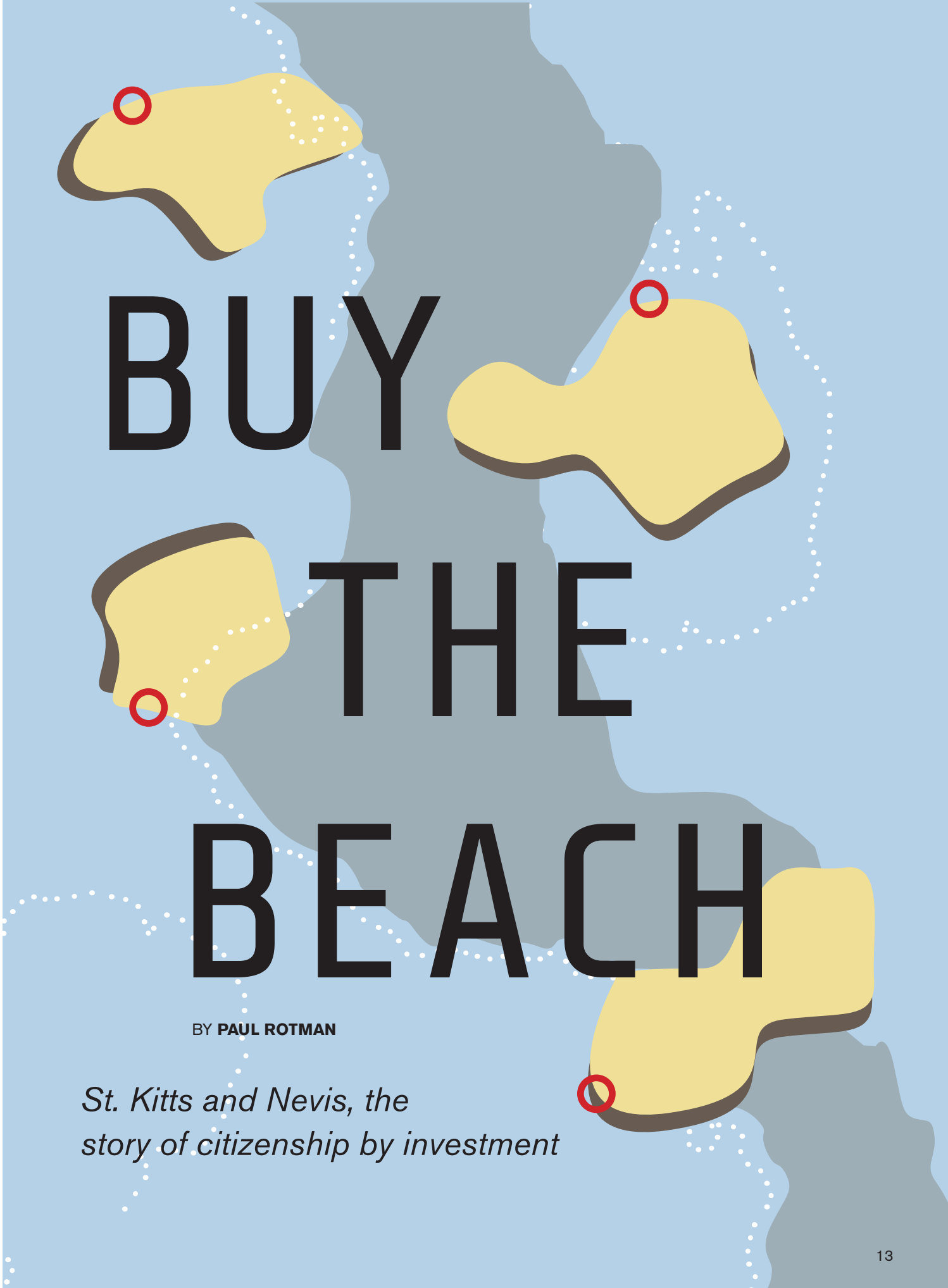
Referring to this arcane practice as "reincarnation before death," Quintman explained that it would effectively allow the Dalai Lama to pick his own successor, thereby seizing



back the reins of control over the process.

Undoubtedly when the current Dalai Lama passes away, the Chinese government will move in and anoint its pick for his reincarnation. Having positioned its own Panchen Lama, in addition to passing various laws about its right to identify reincarnate Lamas, the Chinese government has attempted to claim both political and religious authority on the issue. Whomever China claims to be the next Dalai Lama will surely be a loyal force to the Chinese government and will just as surely be viewed as illegitimate by Tibetans.

It is easy to forget about Nyima, the chosen Tibetan Panchen Lama who was taken from his home as a six-year-old boy and never seen again. The Panchen Lama serves as a strong symbol for the plight of the Tibetan people and their attitude of perseverance. It seems unlikely that the boy, now hopefully a grown man, will ever be seen again, just as it seems unlikely that Tibetans may ever again be their own sovereign in Tibet. Nevertheless, Tibetans continue to hope, continue to practice, and continue to tell the story of the stolen boy.



BUY THE BEACH

BY **PAUL ROTMAN**

St. Kitts and Nevis, the story of citizenship by investment

"Where I'm from is a bit of a difficult thing," explained John Davis, who requested a pseudonym for anonymity. American by birth, he has resided in 12 countries including the United States, Canada, Turkey, Bulgaria, and France, and he has visited over 60 more.

In the early 2000s, his wife's passport, from a country with strained global relations, made it difficult to maintain their jet-setting lifestyle: "We were spending inordinate amounts to get her visas," Davis explained. "For my wife to go to Germany, we would have to fly to [one country], spend a few days [there] to get her visa, fly back [home] and then go to Germany. As you can imagine, doing that for every country you want to go to gets really expensive very quickly."

Thirteen years ago, Davis and his wife made the decision to apply for citizenship in the small Caribbean country of St. Kitts and Nevis in hopes of leaving the headaches and expenses of travel visas behind.

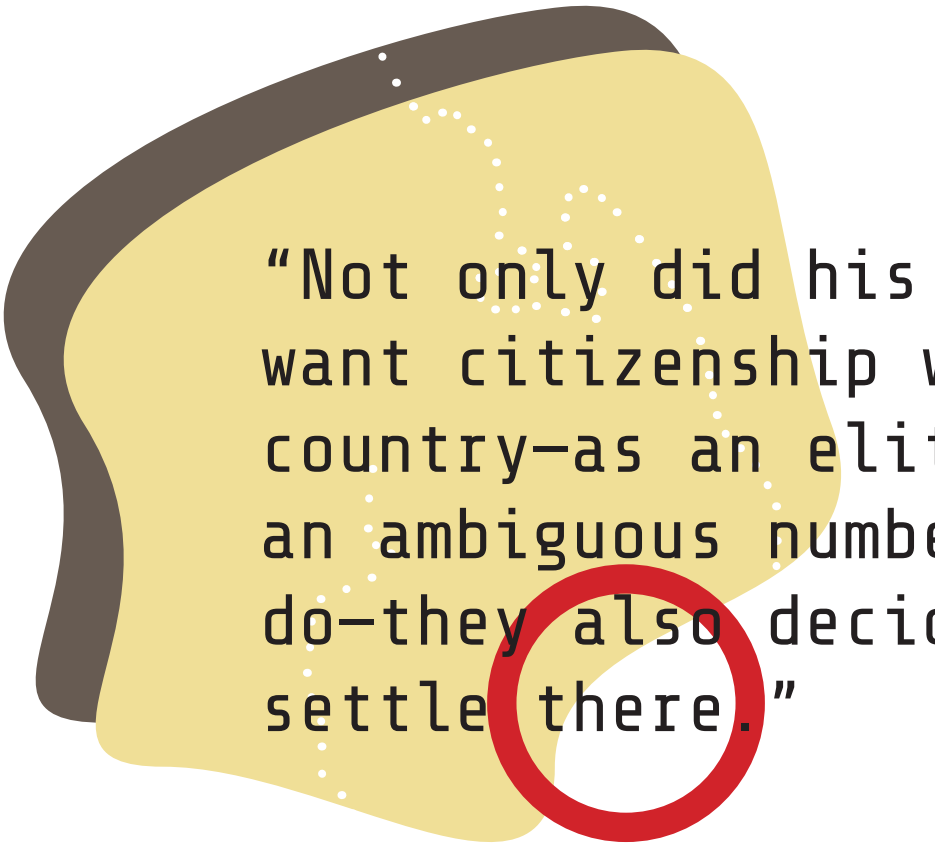
While many families have applied for St. Kitts' coveted citizenship, Davis stressed a unique part of his story. Not only did his family want the country's passport—as an elite group of an ambiguous number of people do—they also decided to settle there. St. Kitts and Nevis, beyond providing visa-less travel, could accommodate their growing family. They wanted to live in the Caribbean, English was the spoken language, and perhaps most appealing of all, "there's no income tax," he said. "It was just a good idea, so we raised the kids here."

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When St. Kitts and Nevis gained political independence from the U.K. on September 19, 1983, the island sought financial independence from a declining British sugar industry, yet simultaneously plunged itself into economic uncertainty. The solution came in the Citizenship Act of 1984, which legalized an innovative source of revenue that would come to generate 12.4 percent of the country's GDP in 2015: selling citizenship to foreign investors.

The program is in fact quite simple: As of October 2018, it takes a $150,000 contribution to the island's Sustainable Growth Fund, a $250,000 contribution to its Sugar Industry Diversification Foundation, a five-year $400,000 real estate investment, or a seven-year $200,000 real estate investment to receive a St. Kitts and Nevis passport. (Due diligence and processing fees not included). "There's not much to say about the process. You submit your birth certificate, your normal documentation, your existing passports, your background checks, and then it's hands off until you hear from [the government], said Davis.

Since its inception, the program has kickstarted the islands' economy. Les Khan, CEO of St. Kitts and Nevis's Citizenship by Investment (CBI) Unit, a government agency within the Ministry of Finance, is responsible for both operating and promoting the program. He emphasized the emerging benefits of this model: "We have been able to diversify our economy, in terms of hotels creating tourism and gen-



erating a small industry." Khan also spoke of CBI-funded infrastructure and social programs including a "major road modification," a social welfare program allowing "any family earning less than $1,100 per month to get an allowance from the government," and "other programs like training providing support to the youth in order to get them off the streets."

The success has been replicated elsewhere: Malta's cash payment-based CBI program has produced astounding results: Since launching their Individual Investor Program (IIP) in 2014, Malta has had among the highest GDP growth rates (6.6 percent) and lowest unemployment rates (3.7 percent) in the E.U. With 76 percent of their €251 million surplus in 2018 funded by the IIP, Malta has also reduced their debt by 28 percent, citizenship-planning firm Henley and Partners told *The Politic*.

It comes as no surprise, then, that countries including Dominica, Malta, Cyprus, the United Kingdom, and even the United States have adopted St. Kitts and Nevis's model in implementing some variation of a citizenship or residency by investment program. By 2014, it was estimated that about half of the European Union's member states had specific immigrant investor routes.

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Because of its high price, the passport remains an enigma. "Sometimes when I travel, Passport Control will stop me," Davis explains, "Some of them have never seen a St. Kitts passport… 'What is this?' Some have heard of it but never seen one. I get friendly interest from Passport Control because it's a curiosity."

The global elite are lining up for additional foreign passports and permanent residencies, prepared to pay six- and seven-figure price tags for a coveted second nationality. Many are trying to buy their way into visa-free travel or lower taxes, while others are hopeful that a second passport can provide them with an escape route in the event of war or political upheaval at home. Countries may ask citizen-hopefuls to channel their investments towards stimulating private-sector businesses, real estate markets, or directly to government funds. Various countries with CBI programs, however, have seen different economic outcomes as a result of the program, stirring controversy as to whether citizenship should be a commodity.

In Khan's experience, CBI applicants to St. Kitts and Nevis are primarily from China, Russia, and the Middle East. Among the most common reasons for investors to consider CBI in St. Kitts and Nevis, he explains, is visa-free travel to 80+ countries, including the Schengen Area. Henley and Partners notes that other investors express interest in the usual benefits of citizenship, including improved education and healthcare, especially if inaccessible in their home countries.

Khan was quick to discredit the assertion that the St. Kitts and Nevis CBI program is used primarily for tax evasion, a critique often levied at countries with similar programs. "We don't have a tax residency program," he insisted. A 2019 Ernst & Young report confirmed that CBI in St. Kitts and Nevis does not allow investors to file taxes there.

Davis—a dual citizen of the U.S. and St. Kitts—again saw his position as unique. Because he resides there, he is able to avoid paying taxes on foreign income, capital gains, gifts, wealth, and even inheritance. "For Americans," he said, "that's the incentive. For the rest of the world, the incentive is generally the ability to travel and go to Europe without having to get visas through bureaucratic processes."

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Henley and Partners is one of many firms that guide investors through the CBI application process. Their role, as they described in a statement to *The Politic,* is to "carefully and thoughtfully evaluate potential applicants' individual needs and aspirations"—factors like their motivations, budget, and intentions to visit versus move to the

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country—"before offering our professional advice on which of these options might be most suitable."

Henley and Partners performs a thorough background check before an investor's application is sent to national governments. "This is especially important because we would never seek to forward a client's application for processing by a sovereign government if we believed the client would not pass a strict background check," Paddy Blewer, Director of Group PR at Henley and Partners, told *The Politic.*

Khan outlined St. Kitts and Nevis's "rigorous" vetting process in particular, which involves consulting international law enforcement agencies including Interpol; terrorist watchlists; anti-money laundering databases; as well as American, British, and Canadian databases. Davis cited his experience in St. Kitts and Nevis: "Six months is usually the current processing time. Assuming you pass that, then you're in."

Background checks are vital to maintaining both the integrity of a country's CBI program and the visa-free access the passport provides. In the months following the 9/11 attacks, for instance, Canada began requiring travel visas from citizens of Grenada, citing security concerns over the island's lack of sufficient vetting of its CBI applicants. Over 18 years later, Grenadian citizens still require a visa to visit Canada.

Davis explained: "They want to keep it clean. They want to make sure [applicants have] legitimate purposes. Most of the people by far are people like us, from certain countries, [from] where it's otherwise just impossible to travel."

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While Henley & Partners points to Malta as an exemplar for a thriving cash-based CBI program, a 2017 report that landed on the desk of Dr. Simon Busuttil, the then-leader of Malta's Nationalist Party, tells a different story—one in which three foreign applicants to the program and eventual Maltese citizens transferred €166,831.90 to a suspicious British Virgin Islands account connected to a licensed CBI agency. Much of the money was reported to be subsequently transferred to an account held by the Prime Minister's chief of staff, Keith Schembri.

Busuttil held a press conference to make what he described as an "explosive announcement" to the public, at one point calling for the Prime Minister's resignation. "The police had never done anything about the matter," Busuttil shared with The Politic. Both the Prime Minister and Schembri strongly denied Busuttil's accusations of corruption.

Regardless of whether Schembri was at fault, the issue highlights corruption as a key threat to the credibility of CBI programs, a threat that compounds with generally anonymous investments.

Busuttil describes the commercialization of citizenship as "selling one's identity and selling one's soul," corrupting what he describes as an intangible belonging to a community.

The Migration Observatory at the University of Oxford engages in extensive research on international migration public policy. Madeleine Sumption, the Observatory's director, sees the arguments on both sides. "The very act of buying and selling something degrades it, if it is not something that is an appropriate subject of a market transaction." On the other hand, Sumption argues that citizenship is not sacred, but rather simply and arbitrarily assigned at birth.

Beyond the concept's questionable ethics, many critics claim that governments often overstate CBI's impacts on economic development. Malta's National Development and Social Fund, a separate entity to which over 70 percent of IIP funds are allocated, "must have well over half a billion euros sitting in it," Busuttil argues. "In terms of using it, frankly we haven't seen many concrete projects. "

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A video for potential investors on the IIP website, however, publicizes many "deliverables" including millions of euros toward upgrades in local health centers, social housing, and sporting facilities and recruitment, as well as to the Puttinu Cares Foundation to assist cancer patients in the UK, a donation from which Maltese citizens do not benefit economically.

For these governments with large immigrant investor programs, national support of their initiatives is key in the programs' success. Khan said of St. Kitts and Nevis: "We have to continually show how many jobs are created in the hotels and how many jobs are created as a result of construction." Both Khan and the country's Prime Minister, Timothy Harris, have taken part in multiple domestic interviews to garner public support, which Khan believes has grown immensely in the last three to four years.

Immigrant investor programs exist much closer to home than many Americans realize. The EB-5 visa in the U.S. grants Green Cards (permanent residency) to foreigners if they invest $500,000 in a "targeted employment area," often a rural and high-unemployment region, or if they invest $1 million in another sector.

The program has attracted harsh bipartisan criticism. Senator Chuck Grassley (R-IA) called the program "a source of cheap foreign capital for big city, big moneyed interests," and Senator Dianne Feinstein (D-CA) said the program sends "a terrible message for the 4.4 million people waiting in line for visas." These stances, Grassley explained, are countered by "powerful special interest groups and big moneyed interests."

By the end of 2019, the U.S. Department of Homeland Security intends to raise the standard minimum investment to $900,000 in targeted areas or $1.8 million in other sectors to account for inflation.

Still, the overall proportion of U.S. admits under the EB-5 program is modest: the 10,009 EB-5 visas in 2017 accounted for just 0.88 percent of all permanent residencies awarded. Sumption is unsure whether EB-5 has been generally beneficial for the U.S. as "there's relatively little data and the program is not very well evaluated." Given the legal hoops of making residency contingent on maintaining investments, coupled with the unpredictable nature of economic cycles, the government cannot prevent investors from withdrawing their investments immediately upon entering the U.S.

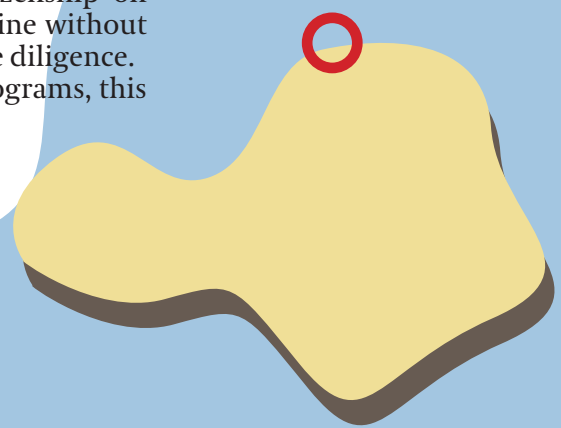
Despite being effectively a backdoor to the U.S. for the wealthy, the EB-5 visa evades the national spotlight. Sumption explained that there is little public concern and economic threat associated with the immigration of wealthy investors compared to that of "lower-skilled workers."

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As CBI programs continue to work for who they are supposed to work for, the market for citizenship is becoming increasingly saturated. Khan believes that his biggest challenge as CEO will be to "continually ensure that we remain competitive and that people know [about] our program." He then explained that St. Kitts and Nevis is unique in offering a new "fast-track capability," allowing applicants to receive citizenship on an accelerated timeline without a compromise in due diligence.

Like all new programs, this one has attracted ire: Busuttil calls CBI "a sale scheme, where you pay money...and you do not even need to set foot on the island," before receiving a passport. Government officials like Khan are now faced with the challenge of molding CBI initiatives—or altogether re-shaping them—to honor the moral value of citizenship. Davis argued that "Nearly all applicants are doing it for valid reasons."

Once on the idyllic island of St. Kitts, the controversy around the program fades into the background. The small country of just over 50,000 permanent residents moves slowly, and there are always familiar faces. "I know people from my daughter's dance class– that's how you know people," Davis shared. On the street, "half will know you by name." To him, it was never just about the passport. It's not the same, he explained, "if you're the type that comes here a few times a year to hang by the beach."



CW: sexual assault

UNFINISHED BUSINESS

A year later, revisiting Brett Kavanaugh's confirmation

BY **JULIA HORNSTEIN**



Ananya Kumar-Banerjee '21 spoke out against Brett Kavanaugh '87 LAW '90 the moment he was nominated to the Supreme Court. "How do we live in a world that is fundamentally unjust and unkind to us?" Kumar-Banerjee asked in an interview with The Politic. "If something structural is bothering you, then you have to do something about it—you don't have an option."

One year ago, Kumar-Banerjee was among a group of students who took part in the undergraduate student-led rally that condemned Kavanaugh's confirmation.

Brett Kavanaugh was nominated to the Supreme Court in July 2018 by President Donald Trump. Shortly thereafter, Christine Blasey Ford, a professor at Palo Alto University, wrote a confidential letter to Senator Dianne Feinstein accusing Justice Kavanaugh of sexual misconduct, recounting the evening of her alleged assault over three decades ago, when both Kavanaugh and Blasey Ford attended high school in suburban Maryland.

By mid-September, Blasey Ford saw the media villainize her for her letter and decided to step forward. She spoke in detail to the Senate Judiciary Committee on September 27, 2018 about the night of her alleged assault and how it has continued to weigh on her for over 30 years.

On September 23, 2018, The New Yorker released an article recounting a new allegation against Justice Kavanaugh: Deborah Ramirez, a former Yale classmate of Kavanaugh's, claimed that he sexually assaulted her at a party in freshman dorm building Lawrance Hall.

By a vote of 50 to 48 on October 6, 2018, the Senate confirmed Brett Kavanaugh to the Supreme Court.

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"As it happens, I was in Sterling Library," Robin Pogrebin '87 recounted. A New York Times reporter of 26 years, Pogrebin is also a Yale mom and was waiting for her daughter

to come back from improv rehearsal during Family Weekend 2018. "I had my computer and watched the live streaming of the vote in the Senate, where Vice President Mike Pence pounded the gavel and called the vote for Kavanaugh's confirmation."

Pogrebin's involvement in the coverage of Kavanaugh's nomination happened almost by accident. A team had formed at the Times to follow the reporting, and Pogrebin, a member of Kavanaugh's class and neighbor in his freshman dorm at Yale, contributed contacts and at one point remembered she still had her Class of 1987 yearbook. Then, a member from the team said, "It seems that we should really have you on this."

Pogrebin's yearbook and collegial connection to Kavanaugh proved to be critical for the Times's coverage. In an interview with Yale alum and North Carolina State University professor Chad Ludington, Pogrebin gained insight into Kavanaugh's character that corroborated both Blasey Ford's and Ramirez's accusations; Ludington remembers Kavanaugh "staggering from alcohol consumption" while an undergraduate at Yale.

But, as decades-old memories often are, the story was never straightforward. As the nomination process wore on and Pogrebin continued to make trips back and forth between New York and Washington, D.C., a series of Kavanaugh's classmates from Yale College and Yale Law School called testimony like Ludington's into question.

Kenneth Christmas LAW '91 testified in favor of Kavanaugh's appointment to the Supreme Court on September 7, 2018. Christmas crystallized his view of Kavanaugh's character in an interview with The Politic: "Brett is a close friend…. he is one of the most honest, upright people I've ever known."

Nonetheless, Christmas made it clear that he doesn't share Justice Kavanaugh's views: "He is a constitutional originalist and strict interpretationist."

Another one of Kavanaugh's classmates and a fellow Stilesian, who chose to remain anonymous, still felt that—despite last year's outcry from current Yale students—Kavanaugh was the right choice for the bench. In an email correspondence with The Politic, they wrote that "if you asked 100 Yalies who knew Brett, I would be shocked if you found one person that said he wasn't a great guy. I still believe that. I knew him. I was in Stiles. I knew him well. The events of September and October of last year brought about comments and proclamations from many Yalies that didn't know him at all, and that's unfortunate."

As Pogrebin continued her coverage of Kavanaugh's confirmation hearings, she found herself coming back to Yale. The connection made her all the more determined to cover reports on Deborah Ramirez, also Yale '87, whose later testimony was buried by louder and whiter voices. Ramirez's accusation focused on an incident during their shared freshman year in Lawrance Hall, home to first-years in Ezra Stiles college.

"I ended up getting the list of who lived in Lawrance that year," Pogrebin recalled. "It was striking to see Kavanaugh and I two entryways down from each other." When Pogrebin visited her daughter at Yale over family weekend, she walked into both her room, in Entryway A, and Kavanaugh's room, in Entryway D. "It was eerie," she said. "Not much has changed."

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During her first year at Yale, Kumar-Banerjee would have described Yale as having "a glossy sheen to it." She felt the prestige associated with the university's name when she mentioned it offhandedly to family on the other side of the world, but during her sophomore year, that shine began to tarnish.





"People were saying things like 'I'm tired'... I remember being really emotionally exhausted"

Julia Bialek '23, a high school senior at Horace Greeley High School in Chappaqua, New York during fall 2018, recalls watching Kavanaugh's confirmation hearings in her high school constitutional law class. At the time, she was already considering applying to Yale, and the incident alleged against Kavanaugh had "happened so many years prior," she recalled an interview with The Politic, "that part of me thought...the world was a different place. It didn't really change my view of Yale." She still remembers the silence that filled her high school classroom as students reflected on the magnitude of the new justice's swearing-in.

The night before Blasey Ford's testimony, Yale's campus was in uproar. Undergraduates gathered on Old Campus, forming a line between Connecticut and McClellan Halls. For several minutes, no one spoke. The silence was broken with a cry from the front: "I believe!" ("Christine Blasey Ford!" the crowd chanted back.)

The protest moved to the Women's Table on Cross Campus. Students passed around copies of chants with phrases like "Violent men like Kavanaugh / should not arbitrate the law" and "Yale's complicit, that we know / Kavanaugh has got to go." Several speakers gave their thoughts; people sang and read poetry. The protest of Kavanaugh's confirmation was the first by undergraduates and followed several by students at Yale Law School.

The morning after this protest, Dean of Yale College Marvin Chun sent an email to the undergraduate community. He wrote that he attended the rally and promised that he would dedicate himself to "building a campus...free from harassment, intimidation, or assault of any kind." He did not comment on the Kavanaugh controversy itself.

When asked about Yale's response to Kavanaugh, Kumar-Banerjee said she was "disappointed but not surprised." She continued: "It's never aggressive enough. It's never moral enough."

Around that time in late September of last year, a graduate student took a different stance on Kavanaugh's confirmation. Jack Palkovic DIV '20 tore down several posters supporting victims of sexual assault that had been tacked on bulletin boards across campus. When confronted by a Yale student, who posted the video of their conversation to Facebook, he claimed that "tearing down a sign is a part of free speech," and that the signs read like a religious creed—which he described mockingly as "We believe holy Blasey Ford and Anita Hill, peace be upon them"—of which he was not a believer. Palkovic argued that the posters made "a statement that you have to have this viewpoint or else you're not within the orthodox view on this campus."

In an email correspondence with The Politic, Palkovic reflected on the events of last fall: "I decided to signal my disagreement with what I felt was the semi-Maoist hysteria that seemed to be gripping [the campus]," he said.

While taking a class at Yale Law School when the Kavanaugh hearings occurred, Palkovic said that he "got a good look at how the Law School students were behaving,

and my impression was not positive, and many professors and [William F. Buckley Program at Yale] fellows shared my sentiments." The Buckley Program did not respond to requests for comment.

Students across the university reacted to Palkovic's actions, prompting him to send an apology email to the Divinity School community: "As a member of the Yale community, I believe strongly in the right of free expression. I apologize for taking down the sign[s] in support of Brett Kavanaugh's accusers."

The turmoil surrounding Kavanaugh's confirmation on Yale's campus did not dissuade Bialek from applying early action to Yale University that same fall. "I don't think [Kavanaugh] is a reflection of Yale," she shared. "Things like that don't just happen at Yale or Ivy League institutions. They happen at campuses and in places across the country."

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"We had the title of the book going into it," Pogrebin explained of the bestseller she recently published with fellow Times reporter Kate Kelly this past September. "The Education of Brett Kavanaugh." Pogrebin and Kelly wanted to examine the pedagogical institutions and broader environment, from preparatory school to the Ivy League, that created the new Supreme Court Justice.

Kavanaugh's confirmation and the ensuing protests both in New Haven and by alumni elsewhere happened in October. Within a month, Pogrebin had been approached by Kelly about a book deal. She was happy to do it: once Kavanaugh was confirmed, both Pogrebin and Kelly felt "a sense of unfinished business. He had been named to the court in a way that brought an abrupt ending to the story," Pogrebin recounted. "We had more lines of reporting in our notebooks, people who felt like they hadn't been heard, and questions that were left hanging."

The pairing of the two reporters made sense, Pogrebin explained: Kelly, an alumna of single-gender D.C. private schools (like Kavanaugh), had been speaking to her publisher about the book, but the publisher required a Yale voice. Up until that point, Pegrebin and Kelly hadn't met. "The Times is a big place: [Kelly] works for the business section on the third floor, I'm [in the culture section] on the fourth floor, and it was something of a shotgun marriage," Pogrebin said.

Despite the emotional nature of the controversy, Pogrebin and Kelly approached the book with a determination to stay politically neutral: "What we owe everyone involved," Pogrebin explained, "was not to make up our minds" before they started. Their job, as they saw it, was to find the facts.

"The hardest part was being overwhelmed by the material." Pogrebin and Kelly had a list of sources from their coverage of Kavanaugh's confirmation for the Times and got to work. Kelly focused on Kavanaugh's time at Georgetown Prep, while Pogrebin wrote about Yale College, Yale Law, and the events that led to his nomination to the Supreme Court.

"He had a number of clerkships; he had gone to law school," Pogrebin said. "We wanted to flesh out those aspects of his life and try to understand him as a three-dimensional character, as well as go back to the Christine Blasey Ford and Deborah Ramirez stories in greater detail, which we felt got short shrift at the time."

"It was clear they wanted to turn this book around quickly, so we started right away."

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"My first day on the beat, I stepped into a national firestorm," Alice Park '21 recalled in an op-ed for the *Yale Daily News* this September. Coverage of #MeToo, the movement that began in late 2017 to support survivors and promote awareness of sexual assault, would be a harrowing job either way, but Park reported surprise that she ended up side-by-side with professional journalists following the Blasey Ford allegations. Outlets with international reach, such as *The Guardian, The Atlantic, and The Washington Post*, cited YLS and undergraduate students for the world to hear.

Alumni, too, joined the chorus. Rebecca Steinitz '86, who describes herself as not-too-involved in the Yale community, watched the pressure build in New Haven from her home in Massachusetts. Steinitz, with Yale alumna Christina Baker Kline '86, co-wrote an open letter supporting the victims of Kavanaugh's alleged sexual misconduct. Within 15 hours of its release, one thousand Yale women signed the open letter. Once it had gained 3,000 signatures, the letter was delivered to the desk of every senator.

"If the women [accusing Kavanaugh of sexual assault] want to go to Washington and speak, we could get 100 Yale women to show up behind them on Monday," Steinitz remembered thinking. She was heartened: "That was ironically when I felt most like a Yale alum."

Others were disappointed by the protests. Akhil Amar, a Sterling Professor of Law and Political Science at Yale who had taught Kavanaugh during his time at YLS, wrote a series of widely circulated articles, beginning with "A Liberal's Case for Brett Kavanaugh" in The New York Times, which was then followed by the aptly-titled "Second Thoughts on Kavanaugh" and "Third Thoughts on Kavanaugh" in the Yale Daily News.

In a particularly controversial turn, Amar opened his Constitutional Law class on September 26, 2018 for questions about his thoughts on Kavanaugh. In his former student's defense, he explained: "People are human. They do things.

"I woke up on Sunday morning after our excerpt was posted, and my daughter called and said, 'Why is my mother trending?'"

They poop, they pee, they sexually gratify themselves—and all these things are embarrassing to admit publicly." From a legal standpoint, he argued: "I don't think it will ever be unconstitutional to confirm someone for a position who is guilty of a felony." Akhil Amar declined multiple requests for comment.

Some students were aghast. "Amar's Constitutional Law course had been strongly recommended to me," Sarah, a student in Amar's class that semester who requested a pseudonym for anonymity, shared. After experiencing that class, though, she "felt like a massive depression settled over a lot of my friends."

Another Yale student who requested anonymity felt differently: "It's challenging and dangerous to talk about Kavanaugh as a conservative on campus because most people at Yale won't even let you say a single word before suggesting that you endorse sexual assault. Obviously, we don't." Nonetheless, the student explained: "Almost no Yale conservatives disagree that there should have been more investigation into the allegations."

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As she stood on Yale's campus that October day in 2018, Kumar-Banerjee could feel the pervasive sadness at the rally, the release of long-held emotions, and the gravity the protest carried. Timothy White, president of the Yale College Democrats, remembers the worried faces glued to phones waiting for news on the nomination and the distraught friends he comforted.

"People were saying things like 'I'm tired.' I remember being really emotionally exhausted; there was a lot to deal with and a lot of sadness that my friends and I were coping with that we had all suppressed prior," Kumar-Banerjee recounted. She pushed through the fatigue to show up at rallies because she believed it was crucial to show that "there could be support and love in our community in spite of this violence that exists in our lives and on the national scale."

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Pogrebin and Kelly's book was published on the one-year anniversary of Blasey Ford's allegations of Kavanaugh's sexual misconduct.

Pogrebin described, through her daughter's remarks, the feeling of receiving her book's national attention. "I woke up on Sunday morning after our excerpt was posted, and my daughter called and said, 'Why is my mother trending?'"

Soon, the world knew about Pogrebin's and Kelly's book. "As much as we understood how triggering this topic this is, I don't think we were fully prepared for the ugliness that is out there," Pogrebin said. "It speaks to what we write about in the book, which is how politically polarized our country has become, and how President Trump's pugilistic language has emboldened people to make casually damaging statements without necessarily being able to support them."

The book and the Kavanaugh nomination process put American culture—contemporary discourse, but also treatment of women and sexual assault—in sharp spotlight.

As Steinitz recalled her time at Yale, she realized that "we knew stuff like this happened all the time. We knew these people, we knew guys like Brett Kavanaugh, and we knew there was a culture that was hostile towards women in many sections of the Yale community."

Now a first-year on campus, Bialek is forced to reckon with the continued implications of the Kavanaugh case and sexual misconduct in colleges more broadly. "What bothers





me is knowing that it's not an isolated incident or just something that happened with one guy. And even though Yale has changed since then—there are more women, it's more inclusive and diverse—there [are] still institutional problems."

The reception for Pogrebin and Kelly's book among journalists was positive. The very lack of editorializing, Jill Filipovic wrote for the *The Washington Post,* makes The Education of Brett Kavanaugh, "a remarkable work of slowed-down journalism." The book marinates in the details and in the authors' own unwillingness to rule a full guilty verdict without perfect proof.

Among politicians, it was even more of a firebrand. "Before our pub date had even arrived," Pogrebin recounted, "six Democratic candidates called for Kavanaugh's impeachment based on our book, and Trump tweeted about our book more than ten times."

But the media soon had new priorities.

"There were calls for Kavanaugh's impeachment based on our book, and then Democrats shifted to calling for Trump's impeachment, so Kavanaugh's alleged infractions paled in comparison…. [Although] there will arguably always be an asterisk next to his name given the allegations that sullied his confirmation process," Pogrebin explained. "He ultimately triumphed and won the prize, given his lifetime appointment on the Supreme Court."

Sarah was surprised that Yale has forgotten Kavanaugh, his defenders, and particularly Amar's comments, which so unapologetically supported the then-judge. At the time, "I was in such shock. I was like, 'Someone in the YDN has to be in this room—someone has to be recording this.' But then no one ever talked about it publicly."

The country is a full year into Justice Kavanaugh's term, and he has made a concerted effort to stay out of the spotlight. Reporting on Kavanaugh's first term is few and far between. This limited news is a product of his efforts, too, as Pogrebin believes many first-term Supreme Court Justices "generally tend to keep their heads down…and Kavanaugh has all the more reason to, given that he'd clearly rather not bring more negative attention to the court."

While Kavanaugh stays quiet and the media finds new subjects, his confirmation's implications may be deafening. "It really is as big of a deal as it was made out to be. Kavanaugh's confirmation to the Supreme Court will affect a generation," White asserted.

"The caravan moves on," Pogrebin said resignedly.

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CW: gun violence

DO

By **Matthew Youkilis**

Sammy Caruso had attended the March For Our Lives in Washington D.C. He had organized walkouts at his school in the months after the shooting in Parkland, Florida. He had even lobbied state legislators about the need for stronger gun legislation in his home state of Ohio. In those first months of 2018, Sammy was already active in a rising movement of young people fed up with inaction on gun laws.

And that was before gun violence hit close to home. On August 4, a mile and a half from Sammy's house, a gunman opened fire outside a bar in Dayton, Ohio. He used an AR-15-style pistol to fire 41 shots in just 32 seconds, killing nine individuals and wounding many more.

In the aftermath of the shooting, Sammy remembered the trauma and frustration his community felt.

"The question that everyone's asking is, 'When am I next?' And this is our city, and we were the next one…. That's the message that I want other people to know is that it can be anyone else's city, just like it was Dayton."

Sammy's words highlight the anxiety many Americans feel in response to the threat of gun violence. Despite overwhelming support for certain gun measures—over 90 percent of Americans support universal background checks, according to the Giffords Law Center—virtually no meaningful federal gun safety proposals have become law in recent years. Several bills approved by the House of Representatives remain stalled in the Republican-led Senate. Many have suggested that the influence of interest groups may be a factor in the lack of new legislation, but it is unclear if this offers a full explanation. With the vast majority of Americans supporting new gun measures, the question becomes: Why does this stagnation persist in the Senate?

Sammy's warning about the omnipresence of gun violence seems especially prescient given the Dayton shooting's context: It occurred just 13 hours after a gunman had killed 22 and wounded 25 at a Walmart in El Paso, Texas. In the days following, community members in both cities attended protests, vigils and funerals. At a

"The question that everyone's asking is, 'When am I next?' And this is our city, and we were the next one…. That's the message that I want other people to know is that it can be anyone else's city, just like it was Dayton."

vigil less than 24 hours after the Dayton shooting, Ohio Governor Mike eWine addressed the shaken community. As he relayed his condolences, a chant of "Do something!" slowly built throughout the crowd. More and more individuals joined, seemingly expressing sheer frustration at state and federal inaction on gun laws. Soon, the crowd's fervent chant drowned out the governor's words.

While government officials debated how to "do something," community members took action. Sammy himself organized an event in which he encouraged students to walk out of school and adults to leave work at 9:37 a.m. on August 21, in honor of Dayton's 937 area code. He then led a rally on Courthouse Square in downtown Dayton to push legislators for stronger gun safety initiatives.

"We're just sick of BS. And that's what people are hearing from our lawmakers. They're talking out of the side of their mouth, and they're not doing anything," Sammy said in an interview with *The Politic*. "I think 'do something'—that chant—is coming from a place of mere frustration. When you say 'do something,' it's almost desperation, because no one is hearing the citizens of any of these cities after mass shootings happen. Not hearing the victims, not hearing how this is actually affecting people."

SOMETHING

Congressional inaction on gun reform persists

cratic House majority wants gun safety activists to know they are listening. While the rapid national news cycle may distract from gun issues in the absence of a recent mass shooting, the House has made steady progress on gun legislation in recent months.

In an interview with *The Politic*, Congressman Ted Deutch (D-FL), a member of the Gun Violence Prevention Task Force, described the current state of gun bills in Congress. "While it's infuriating that Mitch McConnell refuses to bring up the two pieces of legislation that we passed and sent over, including universal background checks, which is overwhelmingly supported by the American people, the House continues to advance a gun safety agenda," Deutch said.

The two bills Deutch mentioned, H.R. 8 and H.R. 1112, seek to enhance the national background check system. H.R. 8 requires a background check for most firearm transfers between private parties, and H.R. 1112 requires firearms dealers to wait at least ten days—increased from a three-day waiting period—before completing a sale.

For Deutch, gun violence has become personal. While he has always supported gun safety laws, the cause took on new meaning on February 14, 2018, when 14 students and three faculty members were killed at Marjory Stoneman Douglas High School in his district.

"It was the most emotional day I've had as a member of Congress," Deutch said, describing how he was first notified of the shooting while in a congressional meeting room. He recalled flying home that night and attending a vigil the next day. "A girl walked up to me and grabbed my hand and said, 'Congressman, my best friend bled out on top of me. You have to do something.'"

After the shootings in El Paso and Dayton, many hoped the Senate would "do something" on the two bills. These brutal massacres reignited the gun safety debate, prompting Democratic lawmakers to call for an early return from Congress's August recess to address the gun violence epidemic. However, congressional leaders chose not to reconvene Congress, and the Senate did not bring any gun-related laws to the floor when they returned. In an interview with radio host Hugh Hewitt, Senate Majority Leader Mitch McConnell (R-KY) justified the delay by invoking President's executive power: Before putting a bill on the floor, McConnell first wants to "know that if we pass [the bill] it'll become law." Although, just after the shooting, President Trump showed a willingness to promote gun reforms and activists saw momentary hope, the president has since backtracked, arguing that Congress should instead focus on mental health. His reticence makes it unlikely that McConnell will bring gun legislation to the floor, regardless of national support.

To Sammy, this stagnation felt inevitable. "I think Dayton happened, it was a shooting and people heard about it on the news…and then we're going to move on. And then we heard about [the shooting in] Odessa, and [soon] that's the last we've heard of Odessa," Sammy said.

Senator Pat Toomey (R-PA), a leader in the fight for bipartisan gun reform, believes that distractions in the news cycle, such as the current impeachment push, can make passage of gun bills more difficult. "I'm hoping… that we can continue to pursue policy that I've been advocating. But I acknowledge that a lot of clamoring for impeachment is not helpful," Toomey said, according to

"When you say 'do something,' it's almost desperation, because no one is hearing the citizens of any of these cities after mass shootings happen."

Politico. "It makes it more difficult."

Nevertheless, the House is moving forward with other proposals. "The Judiciary Committee marked up a ban on high-capacity magazines and an extreme risk protection order bill. We sent them both to the House floor, and I expect the House will vote on those and send those to the Senate as well," Deutch said. "The Gun Violence Prevention Task Force continues to hold multiple events every month…to continue to try and let the light on the need for further action." Deutch also stressed the importance of community engagement in the legislative process, especially about the everyday gun violence that hardly makes the news. "The Crime Subcommittee in the House held a very important hearing recently on everyday gun violence in our communities—what my colleague [Representative William] Lacy Clay refers to as 'slow motion mass shooting'—and we intend to follow that up with field hearings in cities across the country to elevate that as well," Deutch said.

Some Republicans have also supported legislation that they believe will reduce gun violence. Congressman Thomas Massie (R-KY) introduced H.R. 3200, the Safe Students Act, on June 11. The bill seeks to repeal any legal provisions that prohibit individuals from possessing or discharging firearms in a school zone. Since the bill was referred to a sub-committee on June 28, there has been no action on it.

Many gun rights groups, including the Citizens Committee for the Right to Keep and Bear Arms, praised the bill. Their website declares that H.R. 3200 "is a common sense approach to a serious problem. It would allow teachers to carry firearms for self-defense and the defense of students in emergencies."

Hunter Pollack remembers the utter grief that compelled him to become an activist after his sister Meadow was killed in the Parkland school shooting. "Losing my sister in a school [shooting], I couldn't imagine another sibling losing [theirs]," Hunter said in an interview with *The Politic*. "This is an epidemic…we should not be having school shootings."

Hunter believes that school safety bills should be prioritized over gun-related bills. He said, "I don't think that we need gun-free zones. If you want a lock-down area, put a fence up; no firearms, add a metal detector. Because criminals don't abide by the law…. Stop making gun-free zones a walk-in for any mass shooter."

Yet his comments come at a time when more Americans are beginning to support gun-related legislative changes. According to a Fox News poll, 67 percent of Americans now support banning assault rifles and semi-automatic weapons; the same poll showed 51 percent support in March 2013. The current bill proposing a ban on assault weapons, H.R. 1296, was introduced by Representative David Cicilline (D-RI) on February 15, 2019. According to Deutch, there was a recent hearing on the bill, "which sets the stage for action on that issue." Nevertheless, gun safety activists stress that gun deaths occur every day that there is no official law passed. Even on the day that Cicilline introduced the assault weapons ban bill, a mass shooting occurred in Aurora, Illinois.

Simply saying "Aurora mass shooting" is no longer specific enough. For information on the mass shooting of February 15, 2019, it will take nearly two pages of Google results to find a single article. It is now necessary to distinguish between the 2012 Aurora, Colorado mass shooting and the 2019 Aurora, Illinois mass shooting.

Madison Hahamy '23 went to school ten minutes from the Henry Pratt Company warehouse where the Aurora, Illinois mass shooting occurred. She remembers the fear gripping such a close community as a recently terminated employee of the company opened fire, killing five and wounding six more. She recalls her incredulity when realizing that two small towns, both named Aurora, had experienced a mass shooting.

The shooting in Aurora, Illinois occurred the day after the one-year anniversary of the shooting at Marjory Stoneman Douglas High

Simply saying "Aurora mass shoo no longer specific

School, when the student journalism project "Since Parkland" was released. Madison was a Senior Project Reporter for the group, which consisted of about 200 student journalists. With the guidance and resources of *The Trace*, the *Miami Herald* and the Gun Violence Archive, the students aimed to tell the story of every child who died due to gun violence within the 12 months after the Parkland shooting. They wrote 100-word profiles for approximately 1,200 kids, covering the often-neglected stories of less affluent kids who were not killed in mass shootings.

"There's disconn people w people i

In one story, Madison wrote about Tymier Shelby, a 12-year-old from Delaware who was "quiet but dutiful." While at home one summer day, he found and accidentally fired a loaded gun and was pronounced dead later that day. In another story, Madison describes the "uncontained laughter" of three-month-

old Tarique Morris. He was killed, along with his parents, when bullets shattered their car window as they drove through Youngstown, Ohio. "Since Parkland" contains hundreds of these tragic stories, emphasizing how little of gun violence's devastation traditional media reports.

Madison believes that stories like Tymier's and Tarique's show the pervasiveness of gun violence and the necessity of congressional action. "The thing with gun violence is it kills people," she said. "There are things you can talk about that, on a certain level, people die because of it, but gun violence is directly linked. You don't pass this law, people will die…. There's an urgency."

ting" is enough.

While participating in the gun safety movement, Madison has wondered why the Senate's passivity seems inevitable. Although deadly shootings occur daily and mass shootings make headlines regularly, most congressional Republicans have not changed their stances. At the same time, the National Rifle Association (NRA), which many believe is the primary cause for Republican inaction, is struggling to maintain funding and public support.

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"There's such a big disconnect between what people want and what the people in power do," Madison said. "I think it's hard for [politicians] to change their opinions once they've had this psyche for so long and once they've said what they've said for so long. I think part of it is that they've dug their hole and they have to stay in it…. They don't want to look like they're weak or spineless."

Madison believes there is only one way to influence legislation: voting. "If Mitch McConnell says no, there's nothing anyone can do about that," she argued. "So I think it has to be voting people out…. I think specifically for gun violence, we need national-level change."

For Sammy, Madison, and Congressman Deutch, advocating for gun safety legislation was important even before each felt the personal impact of gun violence. With a new Democratic House majority and a public clearly in favor of many gun safety measures, they believe their experiences demonstrate the potential and need for action.

With a weakened NRA, Sammy believes that political rifts have caused the current stagnation. "Part of it is gonna be from the gun lobby. A big part of it, too, is that a lot of our lawmakers are partisan, and they're not running to support the issues that most of their constituents support. They're running to support their party and to support the power of their party," Sammy argued. "We have split those lines, that Republicans are against gun control, and that Democrats are for gun control, and that's that…. Shooters don't care about your party, and lawmakers do, and we need to change that."

Hunter also believes that hyper-partisanship is a significant factor in the lack of new legislation at the federal level. "I just think we live in a tough time, a very partisan time because no one wants to work together in D.C. You have these Democrats in Congress just pushing for impeachment and the president pushing back at them and Republicans pushing back at them…. That's what our government is focused on right now."

For years, this partisan division around gun safety intensified whenever there was another mass shooting in the news. From the massacre at Sandy Hook Elementary School in 2012 to the Las Vegas concert shooting in 2017, the general public and many government officials demanded change only when shootings caught the public's eye. This limited response, combated with rebukes from the gun lobby, led to politicians ignoring the massacres and the "slow motion mass shootings" occurring regularly. Even in the aftermath of large-scale activism following the Parkland shooting and continued frustration after the massacres in El Paso and Dayton, some have suggested that impeachment and other 2020 election issues will distract from reform.

But Deutch believes that gun safety has become a crucial voting issue—and if senators don't change their view, the public will vote them out. "I don't think that [Republican senators] appreciate how dramatically different things are now and how significant of a stake they're making in ignoring the demands of their constituents to take meaningful action," Deutch said. "Their decision to continue to side with [gunmakers and lobbyists], in many instances, is going to cost them at the polls…. Aside from this being an immoral decision to refuse to act to keep their community safe, they're making a bad political judgment. And it's going to cost them."

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Students and faculty speak against government involvement in Arabic education

BY **ELLA FANGER**

When Inbar Pe'er decided to study Arabic in college, she didn't expect to learn to say "United Nations" before "to talk." The sophomore at Columbia University harbored an interest in international affairs and thought the language was critical for work in Middle East foreign policy.

This emphasis on national security-related vocabulary in Arabic study is not unique to Columbia. *Al-Kitaab*, a widely used Arabic-language textbook, incorporates lessons on diplomatic and military vocabulary before the verbs for "to do" or "to think." The curriculum itself thus prepares students of Arabic best for careers in national security and government, particularly for interacting with politicians and officials.

Though students may be well equipped to utilize their Arabic skills to decipher messages for an intelligence agency or discuss geopolitics with foreign ambassadors, this focus on national security issues politicizes language study. The angle comes at the cost of cultural vocabulary vital to devel-

oping a complex understanding of the Middle East and North Africa beyond a U.S.-centric national security paradigm. Students believe they need to learn vocabulary to engage with the Arab world diplomatically and militarily, leading them to pursue posts in the national security field, and the cycle continues. Allison Rice, a sophomore studying Arabic at Yale University, told *The Politic*, "The Arabic curriculum here does sometimes tend to be more towards foreign policy, and, I would even venture to say pro-U.S. lens."

United States security priorities have largely shaped the Arabic curriculum, in particular after 9/11 when the government ramped up federal funding for study of the language. In January 2006, the Bush administration created the "National Security Language Initiative" (NSLI) in order to incentivize American students to study so-called "critical languages" including Arabic, Russian, and Farsi. Between 2007 and 2009, the U.S. Department of Defense contributed $705 million to the initiative, financially linking national security interests and education initiatives.

The NSLI serves as an umbrella for a multitude of programs and offices under the Departments of Defense (DoD), Education (DoE), and State (DoS), including the Defense Language and National Security Education, The Language Flagship Programs, and the Fulbright Foreign Language Teaching Assistant Program, among others—all of which prioritize language study in service of U.S. national security.

The initiative, by the federal government's standards, has worked. According to the Modern Language Association (MLA), the number of American students studying Arabic increased by 126.5 percent from 2002 to 2006 and another 46.3 percent from 2006 to 2009. Christopher Stone, an associate professor of Arabic

This angle comes at the cost of cultural vocabulary vital to developing a complex understanding of the Middle East and North Africa.

and head of the Arabic program at Hunter College said, "I did notice a change in the motivations of students studying Arabic prior to 9/11 and after." Arabic class enrollment continued to increase between 2006 and 2016.

The militarization of language study has concrete ramifications for U.S. engagement with Arabic-speaking countries and contributes to ongoing military operations. Stone continued in his article, "The Department of Defense understands linguistic and cultural proficiency to be weapons in its arsenal." Indeed, in his 2006 address announcing the NSLI program, President Bush proudly explained how language skills would be useful to U.S. forces on the battlefield in Iraq and Afghanistan. "[The Secretary of Defense] wants his young soldiers who are on the front lines of finding these killers to be able to speak their language," Bush declared.

Arabic programs are particularly susceptible to manipulation because of the clearly differentiated dialects. Modern Standard Arabic (MSA) is used in official government addresses and newspapers but is not spoken between people on the street or in the home. In those contexts, Arabic-speakers employ regional dialects which are often very different from MSA. In order to ensure that students can employ their Arabic across the world (albeit in limited professional and cultural contexts), most introductory Arabic courses focus on MSA, also known as *fusha*, with some dialect work as a bonus. When Margaret Dene, a graduate student studying Arabic at Harvard University, studied abroad in Morocco, she was dismayed at how little of the Arabic she was taught in her courses was useful. Dene said, "Getting on the ground and realizing that I couldn't use the Arabic that I had spent the past two years learning to communicate with people was a pretty big shock."

At Yale, the first two levels of Arabic instruction focus on MSA Monday through Thursday and reserve Friday to work with the Levantine dialect, which is spoken in countries such as Jordan, Syria, and Lebanon. Even then, students are often exposed to only one or two dialects, out of the many that exist. Dene acknowledged, "There aren't that many resources for learning Arabic outside of *Al-Kitaab*, and that book is primarily *fusha*." Students are thus more likely to gain skills in MSA through their coursework, which are primarily useful in diplomatic or military contexts.

Given her ambitions to work in government, Dene is focused on learning *fusha* rather than the dialects. "For now I think *fusha* is the most useful thing. It allows me to listen to speeches at the UN or read *Al Jazeera*," she said. However, Pe'er expressed frustration that this linguistic variation would limit her ability to speak to people in the Arabic-speaking countries that she visited. "I realized that in order to be able to actually speak to anyone, I would need to learn the dialects," she said.

The federal government finds itself in a convenient position. Programs need money, and the government can step in with generous bequests and seemingly-straightforward stipulations.

As a result, Stone explained, "As U.S. public universities are losing funding from their states, I know it is tempting for administrators to replace those monies with military funding." Indeed, the Language Flagship program, a federally-funded program which aims to "develop a pool of language-capable professionals in various fields of study available for employment with federal national security agencies," according to its website, funds programs at 22 universities across the country, 20 of which are public universities.

Stone expressed concern with the system: "My

"My problem with the funding is two-fold: a lack of transparency and the potential militarization of universities in the U.S."

problem with the funding is two-fold: a lack of transparency and the potential militarization of universities in the U.S."

"There is a teacher education program called STARTALK that is funded by the NSA," he explained, "Though you can find this info on their website, I have never seen a call for participation in the program mention the funding source. Those participating should have a clear picture of who is funding any program they are participating in," Stone said in an email.

In an article for the magazine *Jadaliyya,* Stone said, "There is no doubt that these funding sources are already influencing the choices of many, conscripting students away from the civilian sector toward career paths in the military and in intelligence." Alexandra Bauman, a junior at Yale University, explained, "There aren't that many career options that are made clear to you other than working for the State Department or the CIA after graduation to use your Arabic."

Given the institutional and financial support for Arabic studies geared towards national security interests, some professors have felt it necessary to supplement lessons drawn from the textbook with additional materials that focus on culture in Arabic-speaking countries. Pe'er noted that during her language study abroad program in Tunisia and Jordan, "Our professors really tried to counter the fact that our textbook had a huge political emphasis by focusing on songs, culture, and literature." In this way, professors can increase students' engagement with the region through channels other than diplomacy or the military.

Students like Bauman are pushing back against the focus in Arabic language classes that fails to engage with the region's complex sociocultural history. "I feel like I'm trying to make a statement against the security route by studying Arabic because I don't want to add to the huge number of Americans who only want to study Arabic because they're interested in foreign policy and security."

In addition to coursework at universities, study abroad opportunities as early as high school incentivize students to utilize Arabic for national security interests. The National Security Language Initiative for Youth (NSLI-Y) provides scholarships for students to study Arabic in Morocco and Jordan. Furthermore, the Critical Language Scholarship (CLS) Program provides full funding for summer study of designated critical languages.

The application for CLS asks students to articulate how they will serve as "an effective citizen diplomat" while abroad and detail how they will use the language in their future career. These programs thus provide not only an academic but also a financial incentive for students to direct their interests in Arabic towards serving national security interests. As Elizabeth Gill, Director of Career and Alumni Engagement at Yale's Jackson Institute for Global Affairs, noted in an email to *The Politic*, "There are far more opportunities, especially through the U.S. government, to study Arabic than there were prior to [9/11]. U.S. government-funded programs generally focus on national security/diplomacy."

Some programs are even more explicit in their direction of students towards national security careers. According to the program's website, the Boren Awards offer scholarships

of up to $20,000 for students to study abroad in "world regions critical to U.S. interests." Boren Awards recipients are required to commit to working in the federal government for at least one year after graduation. The program website states that, "Preference will be given to applicants who can demonstrate a longer-term commitment to government service." The criteria for selecting awardees listed on the program's website include whether the applicant makes a compelling case that their study can contribute to U.S. national security and their future government career.

But students' reasons for studying Arabic abroad often expand beyond the national security realm. Gill said, "Some [students] are interested in security, others in migration and human rights," noting that there is "really a wide variety." Students interested in the latter are less likely to be able to fund their summer experiences through public funding. Gill noted that, "U.S. government language fellowships often recruit students interested in security issues, but the Yale fellowships really attract a diversity of people." Students at schools with limited institutional funding beyond government sources for language study are unlikely to similarly be able to choose a focus outside of national security.

Government funding for the study of critical languages, however, comes with strings attached. Stone further noted how language funding is but one aspect of a broader trend of militarization of Middle Eastern studies and politicization of funding in the field. In September of this year, the DoE opened an inquiry into the programming of a Middle Eastern studies center co-hosted by Duke University and the University of North Carolina (UNC). The DoE wrote a letter to the program expressing concern that much of its programming has little relevance to Title VI, a federal grant program that funds international studies and foreign language programs at U.S. universities like Duke and UNC.

In the letter, Robert King, Assistant Secretary for Postsecondary Education at the DoE, wrote, "Although a conference focused on 'Love and Desire in Modern Iran' and one focused on Middle East film criticism may be relevant in academia, we do not see how these activities support the development of foreign language and international expertise for the benefit of U.S. national security and economic stability." The letter came with a substantial threat. King wrote, "As a condition for future Title VI funding, the Duke-UNC [Consortium for Middle East Studies] is directed to provide a revised schedule of activities that it plans to support for the coming year, including a description demonstrating how each activity promotes foreign language learning and advances the national security interests and economic stability of the United States."

These language programs ultimately teach American students to see Arabic-speaking individuals across the world as subjects of U.S. policy—or even U.S. enemies. This framing, which often plays into racialized and Islamophobic perceptions of people living in Arabic-speaking countries, obfuscates the agency of these individuals. Stone said, "I think [replacing state funding with military funding] could ultimately have a corrupting influence on our education system."

An Interview with Adam Kokesh

BY **ANDREW BELLAH**

As Adam Kokesh describes on his campaign website, he is "running for Not-President of the United States" on the Libertarian ticket. Adam is a veteran of the marines, activist, and former leader of Veterans Against the Iraq War. *The Politic* spoke with him about his plat-

As Adam Kokesh describes on his campaign website, he is "running for Not-President of the United States" on the Libertarian ticket. Kokesh is a veteran of the marines, activist, and former leader of Veterans Against the Iraq War. *The Politic* spoke with him about his platform, his motivations, and the current state of libertarianism in America.

Tell me about your campaign—running on the platform of abolishing the federal government. What has it been like vying for the Libertarian nomination with this idea?

I do have to point out from the start that while it's true that I'm technically running for president, it'd be more accurate, in a sense, to say that I'm running to turn the presidential election into a referendum: whether or not the federal government should be allowed to exist at all. I kind of throw up in my mouth a little bit every time I have to introduce myself as a presidential candidate. To have the intellectual arrogance to think you can mandate authority over other people's lives better than they can is fundamentally shocking.

Being able to get out and spread this idea of dissolving the federal government through this organized top-down process has been really amazing. It shows people that we have an alternative here, merg[ing] the idealism of libertarianism with the pragmatism of how do we actually start moving in that direction in a way that can get the majority of America on board. We've endured the government forcing us into a one-size-fits-all solution that doesn't work for every-

"if I were president, I'd just do away with three small things about the federal government—the judiciary, the legislature, and the executive—and then I'd quit, go home, and get a real job."

one—in most cases not really anyone—and the dialogue is finally shifting.

What made you want to start this journey?

It's a bit of a story to really explain how this campaign came about, because it started all the way back in 2012. It was at a conference held in Virginia, debating on the topic of freedom versus statism. And at some point in our debate, I was asked "Oh yeah, well what would you do if you were president?" And I remember thinking to myself, "well what would I do?"
I thought about it and said, "Fine, if I were president, I'd just do away with three small things about the federal government—the judiciary, the legislature, and the executive—and then I'd quit, go home, and get a real job."
I have some responsibility to think about if I was in that position, what would I do, and how would my ethics, morals, and values determine my choices when wielding such massive power. When the American people vote on who should be president, they're really having the highest-level conversation possible about policy, and the ethics of that policy—*that* we're really granted in the United States. We can make decisions electorally, and know that at least, only on the big points, that the government can only subvert the will of the people so much.

You served in the Marine Corps Iraq in 2004. How did this experience formulate or influence ideas of libertarianism?

I joined the Marine Corps at age 17, trained, and volunteered to go to Fallujah, Iraq in 2004. At the time I can say I was a sort of Libertarian in name only—this arrogant, militarist, anarchist of sorts. I was willing to kill, and even die, for politicians based on these beliefs that somehow the government should have a monopoly on violence. This violence and conflict—do you really want to give those to a monopoly? No surprise that we end up with the worldwide War on Terror, or with an imperialistic mil-

itary, a surveillance state that watches your every move, a police state that's killing innocent people in the streets, a War on Drugs that's putting innocent people in jail and destroying communities.
So my time in Iraq was really important, because when you see people die, in front of you, for your ideas, the ethical standard that you hold those ideas to increases dramatically. You have to start to question those ideas. That's what led me ultimately to the non-aggression principle of government.

What would America governed by these philosophical principles of true libertarianism look like? What would be the ideal? What would it look like if this referendum went through?

After we dissolve the federal government, we're going to have 50 sovereign states, 562 sovereign native nations—or possibly more. This is a step in the right direction for localization—the process of taking governments apart from the top-down until communities and individuals have their sovereignty. What that means for accountability on the national level is that we'll have an accountability for governance that is immediate and absolute.
I want people to say that they don't want to be a part of this system anymore and to be able to have this exit strategy to improve their relative bargaining power vis-à-vis an authority that may not have their best interests at heart. Getting government out of the way of this allows you to be free to organize your own life and community based on your values.

Do you think America has the potential to accomplish something like this?

I think a better question would be if America can sustain the federal government. Clearly it's been morally bankrupt, and disavowed from its original principles for a long time, but how long will it be before this becomes unsustainable to the point that people disavow themselves from its authority. I mean, this is America—we can do anything we want! That may be a bit idealistic, but I mean this in a very serious way too; if we want real freedom, we're sure as hell willing to take it. This is the foundation of Americanism.
So can America be American? Of course it can—I think we got this. Localization is the cure for polarization. Liberals and conservatives have been forced to fight in this system. When we say that we want government localized, we say that we're taking the power, and we're giving back to you, the people. We don't want a government united by government but by freedom.

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